Biogen MA Inc. et al v. Cipla Ltd. et al

Plaintiff:	Biogen MA Inc. and Biogen Inc.
Defendant:	Cipla Ltd. and Cipla USA, Inc.
Case Number:	1:2026cv00736
Filed:	June 22, 2026
Court:	U.S. District Court for the District of Delaware
Presiding Judge:	Colm F Connolly
Nature of Suit:	Patent - Abbreviated New Drug Application(ANDA)
Cause of Action:	35 U.S.C. § 271 Patent Infringement
Jury Demanded By:	None

Date Filed	Document Text
July 2, 2026	**Filing 12** SO ORDERED, re (16 in 1:26-cv-00580-CFC, 14 in 1:26-cv-00735-CFC, and 10 in 1:26-cv-00736-CFC) STIPULATION Regarding Consolidation and Scheduling Conference filed by Biogen MA Inc., Biogen Inc. The Somerset I, Somerset II, and Cipla Actions are consolidated for all purposes. All filings shall be made in the lead case, C.A. No. 26-580-CFC. The July 9, 2026 Telephonic Scheduling Conference is RESCHEDULED to August 6, 2026 at 2:00 p.m. See Order for further details. Signed by Judge Colm F. Connolly on 7/2/2026. Associated Cases: 1:26-cv-00580-CFC, 1:26-cv-00735-CFC, 1:26-cv-00736-CFC(mws)
July 2, 2026	Case associated with lead case: Create association to 1:26-cv-00580-CFC. ALL FUTURE FILINGS SHALL BE MADE IN LEAD CASE NO. 26-580-CFC ONLY. (mws)
July 1, 2026	**Filing 11** Letter to The Honorable Colm F. Connolly from Karen Jacobs - re (16 in 1:26-cv-00580-CFC, 10 in 1:26-cv-00736-CFC, 14 in 1:26-cv-00735-CFC) STIPULATION and [Proposed] Order Regarding Consolidation and Scheduling Conference . (Jacobs, Karen)
July 1, 2026	**Filing 10** STIPULATION and [Proposed] Order Regarding Consolidation and Scheduling Conference - filed by Biogen Inc., Biogen MA Inc.. (Jacobs, Karen)
June 29, 2026	**Filing 9** SUMMONS Returned Executed by Biogen MA Inc., Biogen Inc..Cipla USA, Inc. served on 6/29/2026, answer due 7/20/2026. (Tigan, Jeremy)

Date Filed	Document Text
June 29, 2026	**Filing 8** SUMMONS Returned Executed by Biogen Inc., Biogen MA Inc..Cipla Ltd. served on 6/29/2026, answer due 7/20/2026. (Tigan, Jeremy)
June 24, 2026	**Filing 7** JUDGE COLM F. CONNOLLY STANDING ORDERS. Parties shall comply with all applicable standing orders and consult the Court's website for updates. (mws)
June 24, 2026	Case Assigned to Judge Colm F. Connolly. Please include the initials of the Judge (CFC) after the case number on all documents filed. Associated Cases: 1:26-cv-00735-UNA, 1:26-cv-00736-UNA (alb)
June 23, 2026	**Filing 6** Summons Issued as to Cipla Ltd. on 6/23/2026; Cipla USA, Inc. on 6/23/2026. (Attachments: #1 Summons Issued)(oam)
June 22, 2026	**Filing 5** Disclosure Statement pursuant to Rule 7.1: identifying Corporate Parent Biogen Inc. for Biogen MA Inc. filed by Biogen Inc., Biogen MA Inc.. (oam)
June 22, 2026	**Filing 4** Report to the Commissioner of Patents and Trademarks for Patent/Trademark Number(s) 9,926,559 B2; 10,436,802 B2; 12,013,403 B2. (oam)
June 22, 2026	**Filing 3** Supplemental information for patent cases involving an Abbreviated New Drug Application (ANDA) - Date Patentee(s) Received Notice: 05/19/2026. Date of Expiration of Patent: See Attached.Thirty Month Stay Deadline: 11/19/2028. (oam)
June 22, 2026	**Filing 2** Notice, Consent and Referral forms re: U.S. Magistrate Judge jurisdiction. (oam)
June 22, 2026	**Filing 1** COMPLAINT against Cipla Ltd., Cipla USA, Inc. (Filing fee $ 405, receipt number ADEDC-4997624) - filed by Biogen Inc., Biogen MA Inc.. (Attachments: #1 Exhibits A-C, #2 Civil Cover Sheet)(oam)

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF DELAWARE

BIOGEN MA INC. and BIOGEN INC.,	)	
	)	
Plaintiffs,	)	
	)	
v.	)	C.A._____
	)	
CIPLA LTD. and CIPLA USA, INC.,	)	
	)	
Defendants.	)	

COMPLAINT

Plaintiffs Biogen MA Inc. and Biogen Inc. (collectively "Biogen"), by their attorneys, hereby allege as follows:

NATURE OF THE ACTION

1. This is an action for patent infringement under the patent laws of the United States, Title 35, United States Code, that arises out of the submission by defendants Cipla Ltd. and Cipla USA, Inc. (collectively "Cipla Defendants") of Abbreviated New Drug Application ("ANDA") No. 219377 ("Cipla's ANDA") to the U.S. Food and Drug Administration ("FDA") seeking approval to engage in the commercial manufacture, use, offer for sale, and sale of a generic version of Spinraza® (nusinersen) intrathecal injection ("Cipla's Proposed ANDA Product") prior to the expiration of U.S. Patent Nos. 9,926,559 ("the '559 Patent"), 10,436,802 ("the '802 Patent"), and 12,013,403 ("the '403 Patent") (collectively, "the Asserted Patents"). On May 19, 2026, Biogen received a letter from Cipla Ltd. dated May 18, 2026 ("Cipla's Notice Letter") notifying Biogen that the Cipla Defendants had submitted their ANDA. Upon information and belief, if approved by the FDA, Cipla's Proposed ANDA Product will be marketed as a competing product to Spinraza®, a product developed and marketed by Biogen for the treatment of spinal muscular atrophy ("SMA").

PARTIES

2. Biogen MA Inc. is a corporation organized and existing under the laws of the Commonwealth of Massachusetts, having a principal place of business at 225 Binney Street, Cambridge, Massachusetts 02142.

3. Biogen Inc. is a corporation organized and existing under the laws of the State of Delaware, having a principal place of business at 225 Binney Street, Cambridge, Massachusetts 02142.

4. On information and belief, Cipla Ltd. is an Indian corporation having a principal place of business at Cipla House, Peninsula Business Park, Ganpatrao Kadam Marg, Lower Parel, Mumbai, 400013, India. On information and belief, Cipla Ltd. is in the business of, among other things, manufacturing and selling generic versions of branded pharmaceutical products for the United States market, including in this judicial district.

5. On information and belief, Cipla USA, Inc. is a corporation organized and existing under the laws of the State of Delaware, having a principal place of business at 10 Independence Boulevard, Suite 300, Warren, New Jersey 07059. On information and belief, Cipla USA, Inc. is in the business of, among other things, manufacturing and selling generic versions of branded pharmaceutical products for the United States market, including in this judicial district.

6. On information and belief, Cipla Ltd. and Cipla USA, Inc. collaborate with respect to the development, manufacturing, regulatory approval, marketing, sale, importation, and/or distribution of generic drug products for sale in the United States, including in Delaware.

7. On information and belief, Cipla Ltd., in collaboration with Cipla USA, Inc., caused ANDA No. 219377 to be submitted to FDA and seeks FDA approval of ANDA No. 219377.

8. On information and belief, Cipla Ltd. and Cipla USA, Inc. acted collaboratively in preparing and submitting ANDA No. 219377 and continue to act collaboratively in pursuing FDA approval of ANDA No. 219377 and seeking to market Cipla's Proposed ANDA Product in the United States, including in the State of Delaware.

9. On information and belief, Cipla Ltd. and Cipla USA, Inc. rely on material assistance from each other to market, distribute, offer for sale, and/or sell generic drugs in the U.S. market, including in the State of Delaware. On information and belief, Cipla Ltd. and Cipla USA, Inc. intend to act collaboratively to commercially manufacture, import, market, distribute, offer for sale, and/or sell Cipla's Proposed ANDA Product, in the event FDA approves ANDA No. 219377.

JURISDICTION AND VENUE

10. This Court has subject matter jurisdiction over this action pursuant to 28 U.S.C. §§ 1331, 1338(a), 2201, and 2202.

11. The Court has personal jurisdiction over Cipla USA, Inc. because Cipla USA, Inc. is incorporated in the State of Delaware and maintains a registered agent for service of process in Delaware.

12. The Court has personal jurisdiction over Cipla Ltd. because, *inter alia*, on information and belief, Cipla Ltd. (1) has purposefully availed itself of the privilege of doing business in Delaware, including directly or indirectly through its related entities (e.g., Cipla USA, Inc.), and (2) maintains pervasive, continuous, and systematic contacts with the State of Delaware through the marketing, distribution, and sale of generic versions of branded pharmaceutical products in the State of Delaware, directly and through its affiliates, and by deriving substantial revenue from the importation and sale of its products in the State of Delaware. In the alternative, this Court has personal jurisdiction over Cipla Ltd. in the State of Delaware under Federal Rule of Civil Procedure 4(k)(2) because Cipla Ltd. is not subject to jurisdiction in any state's courts of general jurisdiction and exercising jurisdiction over it is consistent with the United States Constitution and laws.

13. In addition, this Court has personal jurisdiction over the Cipla Defendants because, *inter alia*, the Cipla Defendants have purposefully availed themselves of the benefits and protections of Delaware's laws such that they should reasonably anticipate being haled into court here. Upon information and belief, the Cipla Defendants, themselves and

through their subsidiaries, agents, and/or affiliates, develop, manufacture, import, market, offer to sell, sell, and/or distribute a broad range of generic pharmaceutical products throughout the United States, including in Delaware, and therefore transact business within Delaware relating to Biogen's claims, and/or have engaged in systematic and continuous business contacts within Delaware.

14. Furthermore, this Court has personal jurisdiction over the Cipla Defendants because, *inter alia*, upon information and belief: (1) the Cipla Defendants developed the ANDA product that is the subject of ANDA No. 219377 and submitted ANDA No. 219377 for the purpose of seeking approval to engage in the commercial manufacture, use, sale, or offer for sale in the United States of Cipla's Proposed ANDA Product, including in Delaware; (2) upon approval of Cipla's ANDA, the Cipla Defendants will market, distribute, offer for sale, and sell in the United States, and/or import into the United States, including in Delaware, Cipla's Proposed ANDA Product, and will derive substantial revenue from the use or consumption of Cipla's Proposed ANDA Product in Delaware; and (3) upon approval of Cipla's ANDA, Cipla's Proposed ANDA Product will, among other things, be marketed, distributed, offered for sale, and sold in Delaware, and/or imported into Delaware, prescribed by physicians practicing in Delaware and administered to patients in Delaware, all of which would have substantial effects in Delaware. By submitting Cipla's ANDA, the Cipla Defendants have shown they will use distribution channels to direct sales of Cipla's Proposed ANDA Product into Delaware.

15. In addition, this Court has personal jurisdiction over the Cipla Defendants because they have committed, aided, abetted, induced, contributed to, or participated in the commission of the tortious act of patent infringement that has led and/or will lead to foreseeable harm and injury to Biogen Inc., a Delaware corporation.

16. In addition, this Court has personal jurisdiction over the Cipla Defendants because they have regularly engaged in patent litigation concerning their ANDA products in this District, including by filing counterclaims in such actions, and have consented to jurisdiction in Delaware in prior cases arising out of the filing of ANDAs. See, e.g., *Novartis Pharmaceuticals Corporation et al. v. Cipla USA Inc. et al.*, C.A. No. 26-cv-272-GBW (D. Del.); *Sumitomo Pharma Switzerland GmbH et al. v. Cipla Limited et al.*, C.A. No. 25-cv-312-MN (D. Del.); *Astellas Pharma Inc. et al. v. Cipla Limited et al.*, C.A. No. 24-cv-1333-GBW (D. Del.); *Acerta Pharma B.V. et al. v. Cipla Limited*, C.A. No. 24-cv-587-GBW (D. Del.).

17. Venue is proper in this judicial district under 28 U.S.C. § 1400(b) because Cipla USA, Inc. is organized under the laws of the State of Delaware and maintains a registered agent for service of process in Delaware and therefore resides in Delaware. Venue is proper against Cipla Ltd., a foreign corporation, in any judicial district that has personal jurisdiction over it, including in this District, under 28 U.S.C. § 1391(c)(3).

BACKGROUND

SPINRAZA® (NUSINERSEN)

18. Spinraza® is a survival motor neuron-2 (SMN2)-directed antisense oligonucleotide indicated for the treatment of spinal muscular atrophy (SMA) in pediatric and adult patients.

19. Biogen Inc. is the holder of approved New Drug Application ("NDA") No. 209531 for Spinraza®, which has been approved by the FDA.

20. The Asserted Patents are listed for NDA No. 209531 for Spinraza® in the FDA's *Approved Drug Products with Therapeutic Equivalence Evaluations*, commonly known as the "Orange Book."

21. The '559 Patent, titled "Compositions and methods for modulation of SMN2 splicing in a subject," was duly and legally issued on March 27, 2018. A copy of the '559 Patent is attached as Exhibit A.

22. Biogen MA Inc. is the assignee of the '559 Patent.

23. There is an actual case or controversy between the parties regarding the Cipla Defendants' liability for their infringement of the '559 Patent.

24. The '802 Patent, titled "Methods for treating Spinal Muscular Atrophy," was duly and legally issued on October 8, 2019. A copy of the '802 Patent is attached as Exhibit B.

25. Biogen MA Inc. is the assignee of the '802 Patent.

26. There is an actual case or controversy between the parties regarding the Cipla Defendants' liability for their infringement of the '802 Patent.

27. The '403 Patent, titled "Compositions and methods for detection of SMN protein in a subject and treatment of a subject," was duly and legally issued on June 18, 2024. A copy of the '403 Patent is attached as Exhibit C.

28. Biogen MA Inc. is the assignee of the '403 Patent.

29. There is an actual case or controversy between the parties regarding the Cipla Defendants' liability for their infringement of the '403 Patent.

30. This action is being filed within 45 days of Biogen's receipt of Cipla's Notice Letter.

CIPLA'S ANDA

31. According to Cipla's Notice Letter, ANDA No. 219377 includes a certification pursuant to the Food, Drug, & Cosmetic Act ("FDCA"), 21 U.S.C. § 355(j)(2)(A)(vii)(IV) ("Paragraph IV Certification"), that the Asserted Patents are invalid, unenforceable, and/or not infringed by the commercial manufacture, use, sale, or offer for sale of Cipla's Proposed ANDA Product.

32. The Cipla Defendants were aware of the Asserted Patents at least as of when ANDA No. 219377 was filed with a Paragraph IV Certification.

33. Upon information and belief, nusinersen is the active ingredient in Cipla's Proposed ANDA Product.

34. Upon information and belief, ANDA No. 219377 refers to and relies upon NDA No. 209531 for Spinraza® and contains data that, according to the Cipla Defendants, demonstrate bioequivalence of Cipla's Proposed ANDA Product and Spinraza®, *see* 21 U.S.C. § 355(j)(2); 21 C.F.R. § 314.94(a)(7), or the Cipla Defendants have sought a waiver of the requirement to demonstrate bioequivalence of Cipla's Proposed ANDA Product and Spinraza®.

35. Upon information and belief, the label for Cipla's Proposed ANDA Product ("Cipla's Proposed Label") will be substantially identical to the Spinraza® label. Upon information and belief, the Cipla Defendants intend to have healthcare professionals administer Cipla's Proposed ANDA Product, if approved, as set forth in Cipla's Proposed Label for this ANDA product. Upon information and belief, Cipla's Proposed Label will instruct healthcare professionals to prescribe and administer Cipla's Proposed ANDA Product in the manner set forth in Cipla's Proposed Label.

COUNT I

(Infringement of the '559 Patent)

36. Biogen incorporates each of the preceding paragraphs as if fully set forth herein.

37. Claim 1 of the '559 Patent covers "[a] method of treating a human subject having spinal muscular atrophy (SMA), the method comprising administering to the human subject an antisense oligonucleotide consisting of 18 linked nucleosides, wherein the oligonucleotide has a nucleobase sequence consisting of the nucleobase sequence SEQ ID NO: 1, wherein each internucleoside linkage of the oligonucleotide is a phosphorothioate linkage, wherein each nucleoside of the oligonucleotide is a 2'-MOE nucleoside, and wherein each cytosine of the oligonucleotide is a 5-methyl cytosine, wherein the antisense oligonucleotide is administered into the cerebrospinal fluid by bolus injection into the intrathecal space at a dose of 9.6, 10.3, 10.8, 11.3, or 12.0 milligrams of the antisense oligonucleotide."

38. Upon information and belief, Cipla's Proposed ANDA Product and its use are covered by one or more of the claims of the '559 Patent, including at least claim 1.

39. Upon information and belief, the commercial manufacture, sale, offer for sale, and/or importation of Cipla's Proposed ANDA Product, and/or the use of Cipla's Proposed ANDA Product in accordance with and as directed by Cipla's Proposed Label for that product, will infringe one or more claims of the '559 Patent, including at least claim 1, either literally or under the doctrine of equivalents.

40. Upon information and belief, the Cipla Defendants submitted as part of ANDA No. 219377 a certification of the type described in Section 505(j)(2)(A)(vii)(IV) of the FDCA, 21 U.S.C. § 355(j)(2)(A)(vii)(IV), asserting that the claims of the '559 Patent are invalid, unenforceable, and/or not infringed by the commercial manufacture, use, offer for sale, or sale of Cipla's Proposed ANDA Product.

41. Cipla Ltd. did not contend in Cipla's Notice Letter that Cipla's Proposed ANDA Product, or the use of Cipla's Proposed ANDA Product in accordance with and as directed by Cipla's Proposed Label for that product, would not indirectly infringe at least claim 1 of the '559 Patent.

42. The Cipla Defendants submitted ANDA No. 219377 with the purpose of obtaining approval under the FDCA to engage in the commercial manufacture, use, offer for sale, and/or sale of Cipla's Proposed ANDA Product prior to the expiration of the '559 Patent.

43. The Cipla Defendants' submission of ANDA No. 219377 for the purpose of obtaining approval to engage in the commercial manufacture, use, offer for sale, and/or sale of

Cipla's Proposed ANDA Product prior to the expiration of the '559 Patent was an act of infringement of the '559 Patent under 35 U.S.C. § 271(e)(2)(A).

44. Upon information and belief, the Cipla Defendants have had knowledge of the '559 Patent at least because the '559 Patent is listed in the FDA's Orange Book for Biogen's Spinraza® drug product, and because Cipla's Notice Letter references the '559 Patent. Notwithstanding this knowledge, the Cipla Defendants continue to assert their intent to engage in the commercial manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Cipla's Proposed ANDA Product and Cipla's Proposed Label therefor immediately and imminently upon the approval of ANDA No. 219377.

45. Upon information and belief, the Cipla Defendants plan and intend to, and will, actively induce infringement of the '559 Patent when ANDA No. 219377 is approved, and will do so with specific intent to induce infringement of the '559 Patent, in violation of 35 U.S.C. § 271(b). Further upon information and belief, the Cipla Defendants plan and intend to, and will, do so immediately and imminently upon approval.

46. Upon information and belief, the Cipla Defendants know that Cipla's Proposed ANDA Product is especially made or adapted for use in patented methods of the '559 Patent, and that Cipla's Proposed ANDA Product is not suitable for substantial noninfringing use. Upon information and belief, the Cipla Defendants plan and intend to, and will, contribute to infringement of the '559 Patent immediately and imminently upon approval of ANDA No. 219377, in violation of 35 U.S.C. § 271(c).

47. The foregoing actions by the Cipla Defendants constitute and/or will constitute infringement of the '559 Patent, active inducement of infringement of the '559 Patent, and contribution to the infringement by others of the '559 Patent, either literally or under the doctrine of equivalents.

48. Unless the Cipla Defendants are enjoined from infringing the '559 Patent, actively inducing infringement of the '559 Patent, and contributing to the infringement by others of the '559 Patent, Biogen will suffer irreparable injury. Biogen has no adequate remedy at law.

COUNT II

(Infringement of the '802 Patent)

49. Biogen incorporates each of the preceding paragraphs as if fully set forth herein.

50. Claim 1 of the '802 Patent covers "[a] method for treating a human subject having one or more symptoms associated with spinal muscular atrophy (SMA), the method comprising administering by intrathecal injection doses of an antisense compound comprising an antisense oligonucleotide consisting of 18 linked nucleosides, wherein the oligonucleotide has a nucleobase sequence consisting of the nucleobase sequence SEQ ID NO: 1, wherein each internucleoside linkage of the oligonucleotide is a phosphorothioate linkage, wherein each nucleoside of the oligonucleotide is a 2'-MOE nucleoside, and wherein each cytosine of the oligonucleotide is a 5-methyl cytosine, wherein the doses comprise: (i) a first dose of 12 mg of the antisense compound; (ii) a second dose of 12 mg of the antisense compound 12-18 days after administration of the first dose; and (iii) a third dose of 12 mg of the antisense compound 25-35 days after administration of the first dose."

51. Upon information and belief, Cipla's Proposed ANDA Product and its use are covered by one or more of the claims of the '802 Patent, including at least claim 1.

52. Upon information and belief, the commercial manufacture, sale, offer for sale, and/or importation of Cipla's Proposed ANDA Product, and/or the use of Cipla's Proposed ANDA Product in accordance with and as directed by Cipla's Proposed Label for that product, will infringe one or more claims of the '802 Patent, including at least claim 1, either literally or under the doctrine of equivalents.

53. Upon information and belief, the Cipla Defendants submitted as part of ANDA No. 219377 a certification of the type described in Section 505(j)(2)(A)(vii)(IV) of the FDCA, 21 U.S.C. § 355(j)(2)(A)(vii)(IV), asserting that the claims of the '802 Patent are invalid, unenforceable, and/or not infringed by the commercial manufacture, use, offer for sale, or sale of Cipla's Proposed ANDA Product.

54. Cipla Ltd. did not contend in Cipla's Notice Letter that Cipla's Proposed ANDA Product, or the use of Cipla's Proposed ANDA Product in accordance with and as directed by Cipla's Proposed Label for that product, would not indirectly infringe the '802 Patent.

55. The Cipla Defendants submitted ANDA No. 219377 with the purpose of obtaining approval under the FDCA to engage in the commercial manufacture, use, offer for sale, and/or sale of Cipla's Proposed ANDA Product prior to the expiration of the '802 Patent.

56. The Cipla Defendants' submission of ANDA No. 219377 for the purpose of obtaining approval to engage in the commercial manufacture, use, offer for sale, and/or sale of Cipla's Proposed ANDA Product prior to the expiration of the '802 Patent was an act of infringement of the '802 Patent under 35 U.S.C. § 271(e)(2)(A).

57. Upon information and belief, the Cipla Defendants have had knowledge of the '802 Patent at least because the '802 Patent is listed in the FDA's Orange Book for Biogen's Spinraza® drug product, and because Cipla's Notice Letter references the '802 Patent. Notwithstanding this knowledge, the Cipla Defendants continue to assert their intent to engage in the commercial manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Cipla's Proposed ANDA Product and Cipla's Proposed Label therefor immediately and imminently upon the approval of ANDA No. 219377.

58. Upon information and belief, the Cipla Defendants plan and intend to, and will, actively induce infringement of the '802 Patent when ANDA No. 219377 is approved, and will do so with specific intent to induce infringement of the '802 Patent, in violation of 35 U.S.C. § 271(b). Further upon information and belief, the Cipla Defendants plan and intend to, and will, do so immediately and imminently upon approval.

59. Upon information and belief, the Cipla Defendants know that Cipla's Proposed ANDA Product is especially made or adapted for use in patented methods of the '802 Patent, and that Cipla's Proposed ANDA Product is not suitable for substantial noninfringing use. Upon information and belief, the Cipla Defendants plan and intend to, and will, contribute to infringement of the '802 Patent immediately and imminently upon approval of ANDA No. 219377, in violation of 35 U.S.C. § 271(c).

60. The foregoing actions by the Cipla Defendants constitute and/or will constitute infringement of the '802 Patent, active inducement of infringement of the '802 Patent, and

contribution to the infringement by others of the ’802 Patent, either literally or under the doctrine of equivalents.

61. Unless the Cipla Defendants are enjoined from infringing the ’802 Patent, actively inducing infringement of the ’802 Patent, and contributing to the infringement by others of the ’802 Patent, Biogen will suffer irreparable injury. Biogen has no adequate remedy at law.

COUNT III

(Infringement of the ’403 Patent)

62. Biogen incorporates each of the preceding paragraphs as if fully set forth herein.

63. Claim 1 of the ’403 Patent covers “[a] method of treating spinal muscular atrophy (SMA) in a human subject in need thereof, the method comprising administering to the human subject by intrathecal bolus injection doses of a pharmaceutical composition comprising a pharmaceutically acceptable carrier and an antisense oligonucleotide consisting of 18 linked nucleosides, wherein the antisense oligonucleotide has a nucleobase sequence consisting of the nucleobase sequence SEQ ID NO: 1, wherein each internucleoside linkage of the antisense oligonucleotide is a phosphorothioate linkage, wherein each nucleoside of the antisense oligonucleotide is a 2’-MOE nucleoside, and wherein each cytosine of the antisense oligonucleotide is a 5-methyl cytosine, wherein the doses comprise: (i) a first dose of 12 mg of the antisense oligonucleotide; (ii) a second dose of 12 mg of the antisense oligonucleotide administered approximately 12-18 days after administration of the first dose; (iii) a third dose of 12 mg of the antisense oligonucleotide administered approximately 25-35 days after administration of the first dose, wherein the third dose is administered at least 14 days after the second dose; (iv) a fourth dose of 12 mg of the antisense oligonucleotide administered approximately 60-70 days after administration of the first dose; (v) a fifth dose of 12 mg of the antisense oligonucleotide administered approximately 178-188 days after administration of the first dose; and (vi) a sixth dose of 12 mg of the antisense oligonucleotide administered approximately 298-308 days after administration of the first dose.”

64. Upon information and belief, Cipla’s Proposed ANDA Product and its use are covered by one or more of the claims of the ’403 Patent, including at least claim 1.

65. Upon information and belief, the commercial manufacture, sale, offer for sale, and/or importation of Cipla’s Proposed ANDA Product, and/or the use of Cipla’s Proposed ANDA Product in accordance with and as directed by Cipla’s Proposed Label for that product, will infringe one or more claims of the ’403 Patent, including at least claim 1, either literally or under the doctrine of equivalents.

66. Upon information and belief, the Cipla Defendants submitted as part of ANDA No. 219377 a certification of the type described in Section 505(j)(2)(A)(vii)(IV) of the FDCA, 21 U.S.C. § 355(j)(2)(A)(vii)(IV), asserting that the claims of the ’403 Patent are invalid, unenforceable, and/or not infringed by the commercial manufacture, use, offer for sale, or sale of Cipla’s Proposed ANDA Product.

67. Cipla Ltd. did not contend in Cipla's Notice Letter that Cipla's Proposed ANDA Product, or the use of Cipla's Proposed ANDA Product in accordance with and as directed by Cipla's Proposed Label for that product, would not indirectly infringe the '403 Patent.

68. The Cipla Defendants submitted ANDA No. 219377 with the purpose of obtaining approval under the FDCA to engage in the commercial manufacture, use, offer for sale, and/or sale of Cipla's Proposed ANDA Product prior to the expiration of the '403 Patent.

69. The Cipla Defendants' submission of ANDA No. 219377 for the purpose of obtaining approval to engage in the commercial manufacture, use, offer for sale, and/or sale of Cipla's Proposed ANDA Product prior to the expiration of the '403 Patent was an act of infringement of the '403 Patent under 35 U.S.C. § 271(e)(2)(A).

70. Upon information and belief, the Cipla Defendants have had knowledge of the '403 Patent at least because the '403 Patent is listed in the FDA's Orange Book for Biogen's Spinraza® drug product, and because Cipla's Notice Letter references the '403 Patent. Notwithstanding this knowledge, the Cipla Defendants continue to assert their intent to engage in the commercial manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Cipla's Proposed ANDA Product and Cipla's Proposed Label therefor immediately and imminently upon the approval of ANDA No. 219377.

71. Upon information and belief, the Cipla Defendants plan and intend to, and will, actively induce infringement of the '403 Patent when ANDA No. 219377 is approved, and will do so with specific intent to induce infringement of the '403 Patent, in violation of 35 U.S.C. § 271(b). Further upon information and belief, the Cipla Defendants plan and intend to, and will, do so immediately and imminently upon approval.

72. Upon information and belief, the Cipla Defendants know that Cipla's Proposed ANDA Product is especially made or adapted for use in patented methods of the '403 Patent, and that Cipla's Proposed ANDA Product is not suitable for substantial noninfringing use. Upon information and belief, the Cipla Defendants plan and intend to, and will, contribute to infringement of the '403 Patent immediately and imminently upon approval of ANDA No. 219377, in violation of 35 U.S.C. § 271(c).

73. The foregoing actions by the Cipla Defendants constitute and/or will constitute infringement of the '559, '802, and '403 Patents, active inducement of infringement, and contribution to the infringement by others, either literally or under the doctrine of equivalents.

74. Unless the Cipla Defendants are enjoined from infringing the Asserted Patents, actively inducing infringement, and contributing to infringement, Biogen will suffer irreparable injury. Biogen has no adequate remedy at law.

REQUEST FOR RELIEF

WHEREFORE, Biogen requests the following relief:

(a) A judgment that the Cipla Defendants have infringed the Asserted Patents under 35 U.S.C. § 271(e)(2)(A);

(b) A judgment pursuant to 35 U.S.C. § 271(e)(4)(A) ordering that the effective date of any FDA approval for the Cipla Defendants to make, use, offer for sale, sell, market, distribute,

or import Cipla's Proposed ANDA Product, or any product the use of which infringes the Asserted Patents, be not earlier than the latest expiration date among the Asserted Patents, inclusive of any extension(s) and additional period(s) of exclusivity;

(c) A permanent injunction pursuant to 35 U.S.C. § 271(e)(4)(B) enjoining the Cipla Defendants, and all persons and entities acting in concert with the Cipla Defendants, from making, using, selling, offering for sale, marketing, distributing, or importing Cipla's Proposed ANDA Product, or any product the use of which infringes the Asserted Patents, or the inducement of or contribution to any of the foregoing, prior to the expiration date of the latest-expiring of the Asserted Patents, inclusive of any extension(s) and additional period(s) of exclusivity;

(d) A judgment declaring that making, using, selling, offering for sale, marketing, distributing, or importing of Cipla's Proposed ANDA Product, or any product the use of which infringes the Asserted Patents, prior to the expiration date of the latest-expiring of the Asserted Patents, infringes, will infringe, will actively induce infringement of, and/or will contribute to the infringement by others of the Asserted Patents under 35 U.S.C. §§ 271(a), (b) and (c);

(e) An award of damages or other relief, pursuant to 35 U.S.C. § 271(e)(4)(C), if the Cipla Defendants engage in making, using, selling, offering for sale, marketing, distributing, or importing of Cipla's Proposed ANDA Product, or any product the use of which infringes the Asserted Patents, or induces or contributes to such conduct, prior to the expiration date of the latest-expiring of the Asserted Patents, inclusive of any extension(s) and additional period(s) of exclusivity;

(f) A finding that this is an exceptional case and an award of attorneys' fees pursuant to 35 U.S.C. § 285;

(g) An award of Biogen's costs and expenses in this action; and

(h) Such further and other relief as this Court may deem just and proper.

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June 22, 2026

I. Executive Summary and Procedural Information

- Parties & Counsel:
  - Plaintiff: Biogen MA Inc. (Massachusetts) and Biogen Inc. (Delaware)
  - Defendant: Cipla Ltd. (India) and Cipla USA, Inc. (Delaware)
  - Plaintiff's Counsel: Morris, Nichols, Arsht & Tunnell LLP
- Case Identification: 1:26-cv-00736, D. Del., 06/22/2026
- Venue Allegations: Venue is based on Defendant Cipla USA, Inc. being a Delaware corporation that resides in the district and Defendant Cipla Ltd. being a foreign corporation subject to personal jurisdiction in the district.
- Core Dispute: Plaintiff alleges that Defendants' filing of an Abbreviated New Drug Application (ANDA) to market a generic version of Plaintiff's Spinraza® (nusinersen) product constitutes an act of infringement of three U.S. patents covering methods of treating spinal muscular atrophy (SMA).
- Technical Context: The technology involves an antisense oligonucleotide designed to modulate the splicing of the survival motor neuron 2 (SMN2) gene, thereby increasing the production of functional SMN protein to treat the underlying cause of SMA, a severe neurodegenerative genetic disorder.
- Key Procedural History: This action was filed under the Hatch-Waxman Act, triggered by Defendants' submission of ANDA No. 219377 with a Paragraph IV certification, asserting that the patents-in-suit are invalid, unenforceable, or will not be infringed by the proposed generic product. The asserted patents are listed in the FDA's *Approved Drug Products with Therapeutic Equivalence Evaluations* (the "Orange Book") for Spinraza®.

Case Timeline

Date	Event
2014-09-12	Earliest Priority Date for '559, '802, and '403 Patents
2018-03-27	U.S. Patent No. 9,926,559 Issues
2019-10-08	U.S. Patent No. 10,436,802 Issues
2024-06-18	U.S. Patent No. 12,013,403 Issues
2026-05-18	Cipla Ltd. sends Paragraph IV Notice Letter to

	Biogen
2026-05-19	Biogen receives Cipla's Notice Letter
2026-06-22	Complaint Filed

II. Technology and Patent(s)-in-Suit Analysis

U.S. Patent No. 9,926,559 - "Compositions and methods for modulation of SMN2 splicing in a subject" (Issued Mar. 27, 2018)

The Invention Explained

- Problem Addressed: Spinal Muscular Atrophy (SMA) is a neurodegenerative disorder caused by the loss of the survival motor neuron 1 (SMN1) gene (complaint does not specify; background from related patent: '802 Patent, col. 1:25-29). A nearly identical gene, SMN2, exists but primarily produces a truncated, non-functional protein because of a silent mutation that causes inefficient splicing and exclusion of a critical segment known as exon 7 '802 Patent, col. 1:30-44
- The Patented Solution: The invention provides an antisense oligonucleotide (ASO) that binds to a specific site on the SMN2 pre-mRNA transcript (complaint does not specify; background from related patent: '802 Patent, col. 1:56-61). This binding event modulates the splicing process to promote the inclusion of exon 7, resulting in the production of full-length, functional SMN protein, thereby compensating for the missing protein from the SMN1 gene '802 Patent, col. 1:56-61
- Technical Importance: This approach represents a method to treat the underlying genetic cause of SMA by leveraging the patient's own SMN2 gene, which is present in all individuals with SMA, to produce a functional therapeutic protein (complaint does not specify; background from related patent: '802 Patent, col. 33:25-39).

Key Claims at a Glance

- The complaint asserts independent claim 1 Compl. ¶37
- Claim 1 of the '559 Patent recites:
    - A method of treating a human subject having SMA;
    - The method comprises administering an ASO consisting of 18 linked nucleosides with the sequence of SEQ ID NO: 1;

    - The ASO has specific chemical modifications: each internucleoside linkage is a phosphorothioate, each nucleoside is a 2'-MOE nucleoside, and each cytosine is a 5-methyl cytosine;
    - The ASO is administered into the cerebrospinal fluid by bolus injection into the intrathecal space;
    - The administration is at a dose of 9.6, 10.3, 10.8, 11.3, or 12.0 milligrams Compl. ¶37
- The complaint alleges infringement of one or more claims of the patent, including at least claim 1 Compl. ¶38

U.S. Patent No. 10,436,802 - "Methods for treating Spinal Muscular Atrophy" (Issued Oct. 8, 2019)

The Invention Explained

- Problem Addressed: As with the '559 Patent, the invention addresses the deficiency of functional SMN protein in patients with SMA '802 Patent, col. 1:25-29 Beyond simply providing the therapeutic ASO, there is a need to establish an effective clinical dosing protocol to achieve and maintain therapeutic levels of the drug.
- The Patented Solution: The patent claims a specific method of treatment using the same ASO described in the '559 Patent, but defines a specific multi-dose "loading" regimen. This involves administering three 12 mg doses over a defined period of approximately one month to initiate treatment '802 Patent, abstract '802 Patent, claim 1
- Technical Importance: Defining a specific loading dose regimen is a critical step in drug development, aiming to rapidly achieve therapeutic concentrations of the drug in the target tissue to elicit a clinical response.

Key Claims at a Glance

- The complaint asserts independent claim 1 Compl. ¶50
- Claim 1 of the '802 Patent recites:
    - A method for treating a human subject with one or more symptoms of SMA;
    - The method uses the same 18-nucleoside ASO (SEQ ID NO: 1) with the same chemical modifications (phosphorothioate, 2'-MOE, 5-methyl cytosine) as claimed in the '559 Patent;
    - The ASO is administered via intrathecal injection;
    - The doses comprise a specific loading regimen: a first dose of 12 mg, a second dose of 12 mg administered 12-18 days after the first, and a third dose of 12 mg administered 25-35 days after the first Compl. ¶50
- The complaint alleges infringement of one or more claims of the patent, including at least claim 1 Compl. ¶51

Multi-Patent Capsule

- Patent Identification: U.S. Patent No. 12,013,403, *"Compositions and methods for detection of SMN protein in a subject and treatment of a subject,"* Issued June 18, 2024 Compl. ¶27
- Technology Synopsis: This patent claims a method of treating SMA in a human subject using the same ASO described in the '559 and '802 patents. The claims are directed to a more extended dosing schedule, comprising an initial loading phase followed by subsequent maintenance doses, for a total of six doses administered over approximately 300 days '403 Patent, claim 1
- Asserted Claims: Independent claim 1 is asserted Compl. ¶63
- Accused Features: The complaint alleges that the use of Cipla's Proposed ANDA Product, as directed by its proposed label, will infringe the claimed dosing regimen Compl. ¶65

III. The Accused Instrumentality

- Product Identification: Cipla's Proposed ANDA Product, a generic version of Spinraza® (nusinersen) for intrathecal injection, identified as part of ANDA No. 219377 Compl. ¶1
- Functionality and Market Context: The complaint alleges that the active ingredient in the accused product is nusinersen, the same ASO as in Biogen's Spinraza® Compl. ¶33 It is intended for the treatment of SMA Compl. ¶1 The complaint further alleges that the label for Cipla's product ("Cipla's Proposed Label") will be substantially identical to the Spinraza® label and will instruct healthcare professionals to administer the product in a manner that infringes the asserted patents Compl. ¶35 Compl. ¶39 As an ANDA product, it is positioned to be a direct, lower-cost competitor to Spinraza® upon receiving FDA approval Compl. ¶1

IV. Analysis of Infringement Allegations

No probative visual evidence provided in complaint.

'559 Patent Infringement Allegations

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation

A method of treating a human subject having spinal muscular atrophy (SMA)...	The proposed product is a generic version of Spinraza®, which is indicated for the treatment of SMA.	¶1	col. 33:25-39
...the method comprising administering to the human subject an antisense oligonucleotide consisting of 18 linked nucleosides, wherein the oligonucleotide has a nucleobase sequence consisting of the nucleobase sequence SEQ ID NO: 1...	The active ingredient is alleged to be nusinersen, an 18-nucleoside ASO with SEQ ID NO: 1.	¶33; ¶37	col. 34:50-54
...wherein each internucleoside linkage of the oligonucleotide is a phosphorothioate linkage, wherein each nucleoside of the oligonucleotide is a 2'-MOE nucleoside, and wherein each cytosine of the oligonucleotide is a 5-methyl cytosine...	The active ingredient nusinersen is alleged to have the claimed chemical structure and modifications.	¶33; ¶37	col. 25:11-34
...wherein the antisense oligonucleotide is administered into the	The proposed label is alleged to be substantially identical to	¶35; ¶37; ¶39	col. 41:1-8

cerebrospinal fluid by bolus injection into the intrathecal space at a dose of 9.6, 10.3, 10.8, 11.3, or 12.0 milligrams of the antisense oligonucleotide.	the Spinraza® label and to instruct administration via intrathecal injection at an infringing dose.		

'802 Patent Infringement Allegations

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
A method for treating a human subject having one or more symptoms associated with spinal muscular atrophy (SMA)...	The proposed product is intended for treating SMA.	¶1	col. 1:10-14
...the method comprising administering by intrathecal injection doses of an antisense compound comprising an antisense oligonucleotide consisting of 18 linked nucleosides, wherein the oligonucleotide has a nucleobase sequence consisting of the nucleobase sequence SEQ ID NO: 1...	The active ingredient is alleged to be nusinersen, an 18-nucleoside ASO with SEQ ID NO: 1, administered via intrathecal injection.	¶33; ¶50	col. 1:56-61

...wherein each internucleoside linkage ... is a phosphorothioate linkage, wherein each nucleoside ... is a 2'-MOE nucleoside, and wherein each cytosine ... is a 5-methyl cytosine...	The active ingredient nusinersen is alleged to have the claimed chemical structure and modifications.	¶33; ¶50	col. 25:11-34
...wherein the doses comprise: (i) a first dose of 12 mg...; (ii) a second dose of 12 mg ... 12-18 days after...; and (iii) a third dose of 12 mg ... 25-35 days after...	The proposed label is alleged to be substantially identical to the Spinraza® label and to instruct administration according to the claimed loading dose regimen.	¶35; ¶50; ¶52	col. 43:42-51

- Identified Points of Contention:
    - Scope Questions: A central question for infringement will be whether the final, FDA-approved label for Cipla's product *requires* the specific dosing regimens claimed in the '802 and '403 patents, or the specific doses in the '559 patent. The complaint's theory rests on the allegation that the proposed label will be "substantially identical" to the Spinraza® label Compl. ¶35 Any deviation in the final approved label that provides for non-infringing dosing alternatives would be a primary point of dispute.
    - Technical Questions: In this ANDA context, the technical dispute is more likely to arise in the context of validity rather than infringement. However, a question for the court may be whether the term "12 mg" as used in the claims can be read on a dose that is, for example, dose-equivalent but not an identical mass, should Cipla's product formulation differ in a relevant way.

V. Key Claim Terms for Construction

- The Term: "treating"

- Context and Importance: This term appears in the preamble of the asserted independent claims of all three patents. Its construction is fundamental to defining the scope of the claimed method. Practitioners may focus on this term because the threshold for what constitutes "treating" (e.g., stabilization, amelioration of one symptom, or a more significant clinical improvement) will be critical for both infringement and validity analyses.
- Intrinsic Evidence for Interpretation:
    - Evidence for a Broader Interpretation: The '802 Patent defines "amelioration" as "a lessening of severity of at least one indicator of a condition or disease" and notes it can include a "delay or slowing in the progression" '802 Patent, col. 20:59-65, which may support a broad definition of "treating."
    - Evidence for a Narrower Interpretation: The patent also provides detailed clinical trial data showing specific, significant improvements on the HFMSE scale '926,559 Patent, FIG. 1 '802 Patent, col. 65:1-68:41 A defendant may argue that "treating" should be limited to achieving a level of clinical improvement consistent with these examples.
- The Term: "a dose of 12 mg" / "doses comprise"
- Context and Importance: These phrases are at the heart of the infringement allegation for the specific dosing regimens claimed in the '802 and '403 patents. The dispute will likely focus on whether a physician following the instructions on the defendant's label is *required* to administer the claimed doses and schedules, or if the label merely suggests them as one possibility.
- Intrinsic Evidence for Interpretation:
    - Evidence for a Broader Interpretation (supporting infringement): The claims themselves are precise, reciting specific milligram amounts and timing intervals '802 Patent, claim 1 The patent's examples focus on this specific 12 mg dose, suggesting its centrality to the invention ('802 Patent, col. 67:1-68:41).
    - Evidence for a Narrower Interpretation (against infringement): The specification discusses the possibility of "adjusted doses" based on criteria like a patient's age or CSF volume, and mentions "equivalent doses" '802 Patent, col. 41:24-42:21 A defendant could use this language to argue that the 12 mg dose is merely exemplary and that a physician is free to use other, non-infringing doses, thereby potentially avoiding inducement.

VI. Other Allegations

- Indirect Infringement: The complaint alleges active inducement of infringement under 35 U.S.C. § 271(b). The factual basis is the allegation that Defendants' proposed product label will instruct and encourage healthcare professionals to administer the

generic drug in accordance with the patented methods Compl. ¶45 Compl. ¶58 Compl. ¶71 It is also alleged that Defendants know the product is especially adapted for use in the patented methods and is not suitable for substantial noninfringing use, supporting contributory infringement under 35 U.S.C. § 271(c) Compl. ¶46 Compl. ¶59 Compl. ¶72

- Willful Infringement: The complaint does not use the word "willful" but does lay the foundation for enhanced damages by pleading that Defendants had pre-suit knowledge of the asserted patents. This knowledge is alleged to come from the patents' listing in the FDA's Orange Book for Spinraza® and from Cipla's own notice letter referencing the patents Compl. ¶44 Compl. ¶57 Compl. ¶70 The prayer for relief asks for a finding that this is an "exceptional case" and an award of attorneys' fees Compl. ¶(f)

VII. Analyst's Conclusion: Key Questions for the Case

- A primary issue will be one of validity: Will the Defendants succeed in proving by clear and convincing evidence that the asserted claims-particularly those directed to specific dosing regimens for an already-disclosed compound-are invalid, likely on grounds of obviousness in light of the state of the art for ASO-based therapies and SMA treatment at the time of invention?
- A second core issue will be one of induced infringement by label: Assuming the claims are valid, does the language of the Defendants' final, FDA-approved product label direct, encourage, or require that medical professionals administer the generic product according to the specific doses and schedules recited in the patent claims, or does the label provide sufficient instruction for non-infringing uses?
- A third question concerns the scope of the '559 patent claims: Does the claim language reciting a list of specific doses (e.g., "9.6, 10.3, 10.8, 11.3, or 12.0 milligrams") cover a product label that instructs a 12 mg dose but may also be interpreted to allow for dose adjustments by a physician, raising a question of whether such a label encourages a "substantial noninfringing use"?